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CA Debt Collector License Number Pending
Attorneys for Plaintiff

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Superior Court of California,
County of Los Angeles
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David W. Slayton,
Executive Officer/Clerk of Court,
By G. Megerian, Deputy Clerk

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF LOS ANGELES
CHATSWORTH COURTHOUSE NORTH VALLEY DISTRICT**

MIDLAND CREDIT MANAGEMENT, INC.

Plaintiff,

vs.

ANTONIA RODAS;

Defendant.

Case No. 24CHLC00911

**DECLARATION RE:
CODE OF CIVIL PROCEDURE § 1033;
INTEREST; AND
EVIDENCE CODE § 1550**

I, the undersigned, declare and state as follows:

1. I am the attorney of record for plaintiff MIDLAND CREDIT MANAGEMENT, INC. ("Plaintiff") in the above entitled action. To the extent that Plaintiff acts in its capacity as successor in interest to the original creditor or its assigns, references herein to Plaintiff may include Plaintiff's predecessor in interest. If called to testify, I could and would competently testify as to all the facts stated in this declaration, except as to those matters testified to upon information and belief, and as to those matters, I believe them to be true.

2. I am an attorney and an employee of Midland Credit Management, Inc. ("MCM"), the servicer of Plaintiff's account. I have access to and have reviewed the electronic records pertaining to the account and am authorized to make this affidavit on Plaintiff's behalf. The electronic records reviewed consist of data acquired from the seller when Plaintiff purchased the account, together with records generated in connection with servicing the account since the day the account was purchased by Plaintiff. In addition, I reviewed the documents that are attached to this affidavit.

1 3. Plaintiff is precluded from filing this case in Small Claims Court per Code of Civil
2 Procedure § 116.420(a).

3 4. The complaint seeks to recover amounts owed by Defendant ANTONIA RODAS
4 ("Defendant"). The underlying account that is the basis of the instant lawsuit is a credit account that
5 Defendant held with creditor CREDIT ONE BANK, N.A., account number: XXXXXXXXXXXXX-6140
6 (the "Account").

7 5. Prior to filing this complaint, all right, title and interest to the Account was sold and
8 assigned to Plaintiff. Plaintiff owns the Account and stands in the place of the original creditor and is
9 entitled to collect on the Account as if it were the original creditor. Additionally, as owner of the
10 Account, Plaintiff can testify to ownership of the Account and the fact that the debt remains unpaid by
11 Defendant.

12 6. Upon my review of the Plaintiff's records as they pertain to Defendant's account, there
13 were previous transactions between the original creditor and Defendant. Defendant agreed to repay the
14 amount due to the original creditor, and there was a valid assignment of the account from the original
15 creditor to Plaintiff. By using the Account, Defendant expressly agreed or impliedly promised to repay
16 Plaintiff.

17 7. Prior to the commencement of this action, as part of our usual course of business, and
18 pursuant to Code of Civil Procedure § 1033(b)(2), Defendant was notified in writing of the intended legal
19 action and that any judgment entered against the Defendant would include attorney's fees and collections
20 costs. A true and correct copy of the letter sent to Defendant is attached hereto as "Exhibit A".

21 8. When Defendant failed to pay the balance due, Plaintiff filed and served the Complaint in
22 this action. Defendant was served with the complaint on January 23, 2024. A proof of service was filed
23 with the court.

24 9. Upon my review of the Plaintiff's records as they pertain to this case, I further certify
25 that no papers or any responsive pleadings have been served on and received by Plaintiff by the
26 party(s) in default, therefore the allegations of the complaint are deemed admitted by law.

27 10. Plaintiff seeks entry of Defendant's default and judgment as set forth in the Request for
28 Entry of Default Judgment, Judicial Council for 982 (a)(6) filed with this Declaration.

11. Filed as part of this default judgment packet is an affidavit pursuant to Code of Civil Procedure section 585. The affidavit and its attached exhibits establish the account and the obligation.

COSTS AND FEES

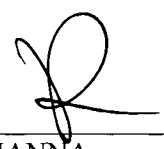
12. Pursuant to Code of Civil Procedure § 1033(b)(2), Plaintiff is entitled to recover the actual costs of a filing fee and the actual costs of service of process.

13. It is the normal business and procedure of Plaintiff to microfilm, image or store as electronic media all documents provided by Plaintiff's predecessor-in-interest. The records are microfilmed, imaged or stored as electronic media to facilitate storage and are maintained as part of Plaintiff's regular business practice and procedure. Therefore, Plaintiff requests that all copies of documents produced as part of this default judgment packet, including any affidavits and any documents attached thereto, be accepted in lieu of the original pursuant to Evidence Code § 1550.

I declare under penalty of perjury under the laws of California that the foregoing is true and correct.

Date February 16, 2024

MIDLAND CREDIT MANAGEMENT, INC.

By: 

- ☒ ROBERT K. HANNA
- ☐ JUNQIAO XIAO
- ☐ HYO JIN JULIA JUNG
- ☐ MICHAEL D. KAHN
- ☐ LAMONT FREEMAN

EXHIBIT A

MIDLAND CREDIT MANAGEMENT
DEPARTAMENTO DE COBRANZAS LEGALES

MidlandCredit.com
(877)-898-5001

Nuestro Cliente: Midland Credit Management, Inc.
Acreedor original: Credit One Bank, N.A.
Número de cuenta original: XXXXXXXXXXXX6140
Saldo Actual: \$2,328.19
Número de cuenta legal interno: 23-200243

Michael Kahn, State Bar No. 236898
Hyo Jin Julia Jung, State Bar No. 316090

Antonia Rodas
P1 T13 250 E Avenue P1
001 Palmdale, CA 93550-3223



11/10/2023

REF: Credit One Bank, N.A.
Número de cuenta original: XXXXXXXXXXXX6140

Estimado(a) Antonia Rodas,

Como abogados del Departamento Legal de Midland Credit Management, Inc., nos ponemos en contacto con usted para el cobro del saldo mencionado arriba. Su cuenta con el Credit One Bank, N.A., propiedad de Midland Credit Management, Inc., ha sido transferida ahora a nuestro Departamento de Cobranzas Legales debido a la falta de pago. Estamos revisando la documentación (incluidos los documentos adjuntos) y nos preparamos para presentar una demanda judicial contra usted.

Por el presente, se le exige que efectúe el pago mencionado arriba EN SU TOTALIDAD: este es el monto adeudado en su obligación original cuando fue transferido a nuestro departamento. **Por favor, envíe el pago a nombre de Midland Credit Management, Inc. a más tardar el 11/20/2023.** También puede hacer su pago en línea en MidlandCredit.com.

Si no recibimos el pago en su totalidad a más tardar el 11/20/2023, presentaremos una demanda judicial contra usted con el fin cobrar mediante sentencia el saldo pendiente de su cuenta, así como los costos y las costas judiciales incurridos y recuperables. Después de dictada una sentencia en su contra, seguiremos intentando cobrar por medio de los diferentes recursos posteriores a la sentencia disponibles en virtud de las leyes de su estado. Si no puede pagar el pago en su totalidad a más tardar el 11/20/2023 comuníquese con nuestra oficina al (877)-898-5001 para analizar opciones de pago asequibles.

Su pronta atención es necesaria para evitar una demanda judicial. Llame al (877)-898-5001 a más tardar el 11/20/2023. También puede hacer su pago en línea en MidlandCredit.com.

Atentamente,
Abogados de Midland Credit Management, Inc.

PD: Se adjuntan copias de algunos de los documentos que recibimos del acreedor original al respecto de esta cuenta.

007345

Visítenos en línea
MidlandCredit.com
Llame al (877)-898-5001
Horario de atención:
Lunes a viernes: 8:00 a.m. a 7:30 p.m., hora del Este
Sábado: Cerrado
Domingo: Cerrado

P.O. Box 2121 Warren, MI 48090

CONSULTE LA INFORMACIÓN IMPORTANTE SOBRE DIVULGACIÓN AL DORSO.

Recorte y entregue la parte inferior con el pago en el sobre provisto.

CERTIFICADO DE PAGO

Número de cuenta legal interno: 23-200243
Número de cuenta original: XXXXXXXXXXXX6140
Saldo Actual: \$2,328.19
Monto adjunto: \$ _____

Antonia Rodas
250 E Avenue P1
Palmdale, CA 93550-3223

Opciones de pago:
1) Pague por teléfono: (877)-898-5001
2) Envíe por correo postal este certificado con su pago y emita el cheque pagadero a nombre de: Midland Credit Management, Inc.



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P.O. Box 2121 Warren, MI 48090

PRE_002-SP

INFORMACIÓN IMPORTANTE SOBRE DIVULGACIÓN:

Tenga en cuenta que la presente comunicación es de un cobrador de deudas. Esto es un intento para cobrar una deuda. Cualquier información que se obtenga se utilizará para ese propósito.

Las llamadas realizadas hacia la compañía y desde ella pueden ser monitorearse o grabarse.

ENVÍE LOS PAGOS A: P.O. Box 2121 Warren, MI 48090

ENVÍE LA CORRESPONDENCIA A: P.O. Box 2121, Warren, MI 48090

En virtud de las leyes estatales, debemos notificar los siguientes derechos adicionales a los consumidores. Esta lista no incluye todos los derechos que tienen los consumidores en virtud de las leyes aplicables:

SI VIVE EN CALIFORNIA, SE APLICARÁ LO SIGUIENTE:

El Código de Derecho Procesal Civil de California §1033(b)(2) nos solicita que le notifiquemos que en caso de procesos judiciales, dichos procesos judiciales podrían resultar en un fallo contra usted que podría incluir costos de tribunal y desembolsos necesarios bajo la ley correspondiente, si se encuentra a Midland Credit Management, Inc. con el derecho legal al mismo.

Número de licencia de California pendiente.

PRE_002-SP

CREDIT ONE BANK CREDIT CARD STATEMENT
Account Number 6140
November 28, 2019 to December 27, 2019

SUMMARY OF ACCOUNT ACTIVITY		PAYMENT INFORMATION		
Previous Balance	\$2,821.41	New Balance	\$2,917.12	
Payments	- \$0.00	Past Due Amount	\$954.00	
Other Credits	- \$0.00	Amount Due This Period	\$1,998.12	
Purchases	+ \$0.00	Minimum Payment Due	\$2,917.12	
Cash Advances	+ \$0.00	Payment Due Date	01/23/20	
Fees Charged	\$43.25	Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee up to \$35.		
Interest Charged	\$52.46			
New Balance	\$2,917.12	Minimum Payment Warning: If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance.		
Credit Limit	\$2,300.00			
Available Credit	\$0.00	For example:		
Statement Closing Date	12/27/19			
Days in Billing Cycle	30			
QUESTIONS? Call Customer Service or Report a Lost or Stolen Credit Card 1-877-825-3242 Outside the U.S. Call 1-702-405-2042 Please send billing inquiries and correspondence to: P.O. Box 98873, Las Vegas, NV 89193-8873				
		Only the minimum payment	1 months	\$2,917.00
If you would like a location for credit counseling services, call 1-866-515-5720.				

TRANSACTIONS				
Reference Number	Trans Date	Post Date	Description of Transaction or Credit	Amount
Fees				
F572700B9000CYLAC	12/27	12/27	ANNUAL FEE 01/20 THROUGH 01/20	8.25
	12/27	12/27	LATE FEE	35.00
			TOTAL FEES FOR THIS PERIOD	43.25
Interest Charged				
	12/27	12/27	Interest Charge on Purchases	52.46
	12/27	12/27	Interest Charge on Cash Advances	0.00
			TOTAL INTEREST FOR THIS PERIOD	52.46
2019 Totals Year-to-Date:				
Total fees charged in 2019				\$493.90
Total interest charged in 2019				\$609.76

Your account is currently closed.

INTEREST CHARGE CALCULATION			
Your Annual Percentage Rate (APR) is the annual interest rate on your account.			
Type of Balance	Annual Percentage Rate (APR)	Balance Subject to Interest Rate	Interest Charge
Purchases	25.40%(v)	\$2,478.06	\$52.46
Cash Advances	25.40%(v)	\$0.00	\$0.00
(v) = Variable Rate			

5385 JBH 001 7 27 191227 0 CXPAGE 1 of 1 20 5727 9620 M115 01GR5385

Please return this portion with your payment, and write your account number on your check, made payable to CREDIT ONE BANK.



For address, telephone and email changes, please complete the reverse side. Or, update your contact information online at www.CreditOneBank.com.

PAY YOUR BILL ONLINE at CreditOneBank.com

Account Number: 6140
New Balance: \$2,917.12
Minimum Payment Due: \$2,917.12
Payment Due Date: 01/23/20

AMOUNT ENCLOSED: \$

CREDIT ONE BANK
PO BOX 60500
CITY OF INDUSTRY CA 91716-0500

ANTONIA RODAS
250 E AVENUE P1
PALMDALE CA 93550-3223



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